

TENTATIVE RULING

Case: **Stark v. Davison**
 Case No. CV2025-2776

Hearing Date: **February 11, 2026** **Department Fourteen** **9:00 a.m.**

On the Court’s own motion, defendant Union Pacific Railroad Company’s motion to strike portions of plaintiffs Harold Stark and Lillian Stark’s first amended complaint for damages is **CONTINUED** to **April 2, 2026**, at 9:00 a.m. in Department Fourteen. The Court finds that defendant failed to meet and confer regarding the first ground in its motion to strike. (Code Civ. Proc., § 435.5, subds. (a)(1), (4); Notice of Motion, p. 2; FAC, ¶ 48; Schroeder decl., ¶ 3; Dingwall decl., ¶ 8, Exhibit A.)

By **March 2, 2026**, the parties are **DIRECTED** to meet and confer, in person, by telephone, or by video conference, regarding both issues raised in defendant’s motion to strike. (Code Civ. Proc., § 435.5; see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 7 [“trial courts are not required to ignore defects in the meet and confer process” and retain the “discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort”].) While the parties did meet and confer regarding the second ground, the Court exercises its inherent discretion to order meet and confer efforts as to both grounds. (See *Dumas*, 45 Cal.App.5th at p. 355, fn. 7.)

By **March 13, 2026**, defendant **SHALL** file and serve a declaration regarding the parties’ meet and confer efforts and identify the remaining issues for the Court’s determination.

By **March 20, 2026**, plaintiffs **SHALL** file and serve a responsive declaration.